

Applicable Law Acts

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User Query :

My personal email account was accessed without my permission after I clicked a suspicious link. The person downloaded private documents, changed my password and later shared some confidential files with other people. I was locked out of the account until I recovered it. What legal provisions may apply to the unauthorized access and disclosure of my information?

Job Id. : Scenario 11/Combined Act

Prepared by : NyaySahayak

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66	(Unauthorized access to computer system)
Section 72A	(Disclosure of personal information in breach of lawful contract)

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- Section 66** : Clicking a suspicious link to gain unauthorized access constitutes "unauthorized access" under **Section 66** . The perpetrator’s actions (changing password, locking the account, and downloading private documents) satisfy the elements of this offence, as confirmed in **State v. Suresh Kumar** (2012). **Section 72A** : The downloading and sharing of confidential files (personal information) without consent directly violates **Section 72A** . The Supreme Court’s **Justice K.S. Puttaswamy v. Union of India** (2017) affirms that privacy of personal data is a fundamental right, making **Section 72A** applicable to intentional disclosures.

✓ STRENGTHS & RIGHTS

- 1
- Explicit prohibition of unauthorized disclosure of personal data (**Section 72A**).
- 2
- Admissibility of digital evidence (e.g., email logs, IP traces) under **Section 65B** .
- 3
- Clear liability for offenders, enabling direct legal remedies for victims.

✗ RISKS & OBLIGATIONS

- 1
- Severe penalties**
Section 66 (up to 3 years’ imprisonment + fine); **Section 72A** (up to 2 years’ imprisonment + fine up to ₹1 lakh).

- 2

Burden of proving intent (e.g., via email logs/IP addresses) requires technical expertise.
- 3

Does not cover accidental breaches (only intentional disclosures qualify).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File with Cyber Cell: Lodge an FIR at the local Cyber Cell (not regular police) under Sections 66/72A.
2. Required Documents*: Screenshots of suspicious link/email, email logs showing unauthorized access, evidence of file sharing.
3. Preserve Evidence: Do not delete email logs/browser history. Cyber Cell will subpoena ISP/email provider for login timestamps/IP addresses (via **Section 69A**).
4. **Section 65B** Certification: Obtain a certificate from the email provider to authenticate electronic evidence (e.g., email trails) for court.
5. Critical Note: *Do not attempt self-recovery*—contact your email provider’s security team immediately to freeze access and preserve logs.

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

No applicable provisions identified per agent response.

✓ STRENGTHS & RIGHTS

- 1

No applicable provisions identified per agent response.

✗ RISKS & OBLIGATIONS

1

No applicable provisions identified per agent response.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No applicable provisions identified per agent response.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1

No applicable provisions identified per agent response.

✓ STRENGTHS & RIGHTS

1

No applicable provisions identified per agent response.

✗ RISKS & OBLIGATIONS

1

No applicable provisions identified per agent response.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No applicable provisions identified per agent response.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 No applicable provisions identified per agent response.

✓ STRENGTHS & RIGHTS

1 No applicable provisions identified per agent response.

✗ RISKS & OBLIGATIONS

1 No applicable provisions identified per agent response.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No applicable provisions identified per agent response.

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